

the assignment (*c*), or subsequently *acquiesced* in it (*d*), they could not afterwards treat it as an act of bankruptcy, for it was not fraudulent as to them. And a trust deed, which as concurred or acquiesced in by all the creditors could not have been impeached under a fiat sued out by a creditor, could not be impeached under the bankrupt's own fiat (*e*).

12. Trader might assign part in trust for his creditors. — Unless he contemplated bankruptcy. — If a person assigned *part* only of his property in trust for creditors, then, if the transaction was *fair* and *bond fide*, and in the ordinary course of business, or upon the pressure of the creditors, it was not open to objection (*f*); but if the settlor contemplated bankruptcy (*g*), or even thought it probable, though not inevitable (*h*), and wished to give an undue preference to certain creditors over others, it was *fraudulent*, and constituted an act of bankruptcy.

13. Assent or acquiescence. — Although the deed was void for any reason at law, yet it might be supported in equity as to creditors who had assented to it, or acquiesced in it, though without actual execution (*i*).

(*c*) Eckhardt v. Wilson, 8 T. R. 142, *per Cur.*; Bamford v. Baron, 2 T. R. 594, note (*a*); Tappenden v. Burgess, 4 East, 230, *per* Lord Ellenborough; *Ex parte* Cawkwell, 1 Rose, 313.

(*d*) *Ex parte* Crawford, 1 Chris. B. L. 97, 140; *Ex parte* Low, 1 G. & J. 84, *per* Lord Eldon; *Ex parte* Cawkwell, 1 Rose, 313; *Ex parte* Shaw, 1 Mad. 598; Back v. Gooch, 4 Camp. 432; S. C. Holt, 13.

(*e*) *Ex parte* Philpot, De Gex, 346; *Ex parte* Louch, Id. 463; *Ex parte* Thomas, Id. 612.

(*f*) Hale v. Allnutt, 18 C. B. 505; Wheelwright v. Jackson, 5 Taunt. 109; Hartshorn v. Slodden, 2 B. & P. 582; Fidgeon v. Sharp, 5 Taunt. 539; Small v. Oudley, 2 P. W. 427; Cock v. Goodfellow, 10 Mod. 489; Compton v. Bedford, 1 W. Bl. 362, *per* Lord Mansfield; Hooper v. Smith, 1 W. Bl. 441; Alderson v. Temple, 4 Burr. 2240, *per* Lord Mansfield; Wilson v.

Day, 2 Burr. 830, *per eundem*; Ib. 831, *per* Foster and Wilmot; Jacob v. Shepherd, cited Worsley v. De Mattos, 1 Burr. 478; Harmon v. Fisher, Cowp. 123, *per* Lord Mansfield; Rust v. Cooper, Cowp. 634, *per eundem*; *Ex parte* Seudamore, 3 Ves. 85; and see Estwick v. Caillaud, 5 T. R. 424; Newton v. Chantler, 7 East, 144; Johnson v. Fesenmeyer, 25 Beav. 88; *Ex parte* Gass, 2 I. R. Eq. 284.

(*g*) Linton v. Bartlet, 3 Wils. 47; Morgan v. Horseman, 3 Taunt. 241; Alderson v. Temple, 4 Burr. 2238; Round v. Byde, 1 Cooke, B. L. 114, 3d ed.; Devon v. Watts, Doug. 86; Pulling v. Tucker, 4 B. & Ald. 382; Harnan v. Fisher, Cowp. 117.

(*h*) Poland v. Glyn, 2 D. & R. 310; Guthrie v. Crossley, 2 C. & P. 301.

(*i*) Spottiswoode v. Stockdale, G. Coop. 102; *Re* Baber's Trust, 10 L. R. Eq. 554.